

IN THE HIGH COURT OF DELHI AT NEW DELHI

INTELLECTUAL PROPERTY DIVISION

I.A. NO. 4930 OF 2026 IN C.S. (COMM) NO. 112 OF 2026

SOLIS PREMIUM COSMETICS PVT. LTD.

... Plaintiff / Applicant

VERSUS

SOLARIS ORGANIC CORP.

... Defendant / Respondent

I. STATEMENT OF FACTS

1. The Plaintiff, Solis Premium Cosmetics Pvt. Ltd., is a globally renowned company engaged in the manufacturing, marketing, and sale of organic, botanical-based premium skincare and wellness products. The Plaintiff has been operating under the brand name 'SOLIS' since January 2018. The trademark 'SOLIS' was successfully registered in Class 3 on October 14, 2019, and has attained immense goodwill and reputation, with global sales exceeding \$15 Million.
2. In November 2025, the Defendant, Solaris Organic Corp., launched a competing line of organic soaps, body washes, and herbal moisturizers under the brand name 'SOLARIS ORGANIC'. The Defendant targets identical high-end organic cosmetic retail chains and premium e-commerce channels.
3. The Plaintiff contends that the Defendant's mark 'SOLARIS' is phonetically, visually, and structurally deceptively similar to the Plaintiff's registered mark 'SOLIS'. The similarity is highly likely to cause consumer confusion and lead to passing off of the Defendant's goods as those of the Plaintiff.
4. The Defendant opposes the injunction, arguing that 'SOLARIS' is derived from 'solar' due to their solar-powered manufacturing process, and that 'Solis' is a common Latin word meaning 'sun' which cannot be monopolized. The Defendant also claims that their packaging artwork, which features a golden sun burst, is completely distinct from the Plaintiff's minimalist monochromatic logo.

II. ISSUES FOR CONSIDERATION

Issue A: Whether the Defendant's trademark 'SOLARIS' is deceptively similar to the Plaintiff's registered trademark 'SOLIS' under Section 29 of the Trade Marks Act, 1999.

Issue B: Whether the Defendant's packaging and branding constitute passing off of the Defendant's products as those of the Plaintiff.

Issue C: Whether the balance of convenience favors the grant of an ad-interim injunction restraining the Defendant from using the mark 'SOLARIS'.

III. LEGAL PRECEDENTS & AUTHORITY

1. **Cadila Health Care Ltd. v. Cadila Pharmaceuticals Ltd. (2001) 5 SCC 73:** The Supreme Court of India laid down the definitive test for deceptive similarity, establishing that in cases of unregistered or registered marks, the court must look at the nature of the marks (word or label), the degree of resemblance, the nature of the goods, and the class of purchasers who are likely to buy the goods.

2. **Amritdhara Pharmacy v. Satyadeo Gupta (1963) AIR SC 449:** The Court held that the comparison of marks must be made from the viewpoint of a person of average intelligence and imperfect recollection. The overall structural and phonetic similarity between 'Amritdhara' and 'Lakshmandhara' was held likely to cause confusion.

3. **Kaviraj Pandit Durga Dutt Sharma v. Navaratna Pharmaceutical Laboratories (1965) AIR SC 980:** The Court clarified that when two marks are compared, it is the overall get-up and structural similarity of the marks that matters, and minor differences in packaging cannot protect a defendant if the core mark is copied.